

SENATE No. 104**The Commonwealth of Massachusetts**

PRESENTED BY:

Joanne M. Comerford*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to an agricultural healthy incentives program.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Joanne M. Comerford</i>	<i>Hampshire, Franklin and Worcester</i>	
<i>Rebecca L. Rausch</i>	<i>Norfolk, Worcester and Middlesex</i>	<i>1/22/2025</i>
<i>John F. Keenan</i>	<i>Norfolk and Plymouth</i>	<i>1/29/2025</i>
<i>Mark C. Montigny</i>	<i>Second Bristol and Plymouth</i>	<i>1/29/2025</i>
<i>Sal N. DiDomenico</i>	<i>Middlesex and Suffolk</i>	<i>1/31/2025</i>
<i>Hannah Kane</i>	<i>11th Worcester</i>	<i>1/31/2025</i>
<i>Jason M. Lewis</i>	<i>Fifth Middlesex</i>	<i>2/14/2025</i>
<i>Patricia D. Jehlen</i>	<i>Second Middlesex</i>	<i>2/19/2025</i>
<i>Bruce E. Tarr</i>	<i>First Essex and Middlesex</i>	<i>2/26/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>3/3/2025</i>
<i>Michael O. Moore</i>	<i>Second Worcester</i>	<i>3/6/2025</i>
<i>Dylan A. Fernandes</i>	<i>Plymouth and Barnstable</i>	<i>3/10/2025</i>
<i>Joan B. Lovely</i>	<i>Second Essex</i>	<i>3/19/2025</i>
<i>Adam Gómez</i>	<i>Hampden</i>	<i>3/24/2025</i>
<i>Julian Cyr</i>	<i>Cape and Islands</i>	<i>3/27/2025</i>
<i>Mike Connolly</i>	<i>26th Middlesex</i>	<i>4/2/2025</i>
<i>Vanna Howard</i>	<i>17th Middlesex</i>	<i>4/4/2025</i>
<i>Susannah M. Whipps</i>	<i>2nd Franklin</i>	<i>4/7/2025</i>

SENATE No. 104

By Ms. Comerford, a petition (accompanied by bill, Senate, No. 104) of Joanne M. Comerford, Rebecca L. Rausch, John F. Keenan, Mark C. Montigny and other members of the General Court for legislation relative to an agricultural healthy incentives program. Children, Families and Persons with Disabilities.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 85 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to an agricultural healthy incentives program.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 128 of the General Laws is hereby amended by inserting after
2 section 2E the following section:-

3 Section 2F. (a) The department of transitional assistance, in partnership with the
4 department of agricultural resources and the department of public health, shall operate a year-
5 round healthy incentives program. The program shall provide that Supplemental Nutrition
6 Assistance Program benefits, established pursuant to the Food and Nutrition Act of 2008, 7
7 U.S.C. section 2011 hereinafter referred to as SNAP, redeemed for fruit and vegetable purchases,
8 either fresh, canned, dried or frozen, by a SNAP recipient at a participating vendor, shall entitle
9 the recipient to receive a matching benefit reimbursed on the recipient's EBT card, within limits

to be established by the department. When expanding the number of participating vendors, the department shall prioritize improving access in areas with limited access to fresh, local produce and that are historically underserved by the program. The department shall collaborate with local food coalitions and nonprofit groups to develop community outreach strategies that ensure equitable access to, and knowledge of, the program.

(b) There shall be established and set up on the books of the commonwealth a separate fund, to be administered by the commissioner of the department of transitional assistance, which shall be known as the Massachusetts Healthy Incentives Fund. The Fund shall consist of all revenues from public and private sources as appropriations, gifts, grants, donations, reimbursements from the federal government and grants-in-aid or other receipts to further the purposes of the Fund in accordance with this section.

(c) The department of transitional assistance and its partners may apply for any available federal programs such as Gus Schumacher Nutrition Incentive Program administered by the United States department of agriculture to provide matching benefits to be deposited in the Fund.

(d) The department of transitional assistance shall, annually on or before January 31, submit a report of the healthy incentives program's activities to the clerks of the house and the senate, the house and senate committees on ways and means, the committee on children, families and persons with disabilities and the committee on agriculture and shall post the report on the department's website. The report shall include, but not be limited to: (i) the number of households utilizing the program, including household size, age and racial demographic information; (ii) the number of program transactions; (iii) the number and name of vendors processing program transactions; (iv) a breakdown of the total number of program participants

and vendors, by their municipality; (v) the number of vendors, by their municipalities, who applied to be a vendor with the healthy incentives program but were not accepted as a vendor due to funding or administrative shortages; (vi) the department's efforts, plans and timeline for identifying geographic areas that are underserved by the program and increasing program activity in those areas, including metrics and factors to be used to make determinations for the addition and siting of vendors; and (vii) any further recommendations to improve the performance of the program.

SECTION 2. The department of transitional assistance shall promulgate rules and regulations to implement the program set forth in section 1.